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U.S. Department of State Diplomacy in Action

Laos

Bureau of Democracy, Human Rights, and Labor

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The Lao People's Democratic Republic is an authoritarian, communist, one-party state ruled by the Lao People's Revolutionary Party (LPRP). The 2005 census estimated the population to be 5.6 million. The most recent National Assembly election was held in April 2006. The constitution legitimizes only a single party, the LPRP, and almost all candidates were LPRP members vetted by the party. The LPRP generally maintained effective control of the security forces, but on occasion elements of the security forces acted outside the LPRP's authority.

The central government's overall human rights record improved somewhat during the year, but violations occurred regularly at the provincial, district, and local levels. Citizens continued to be denied the right to change their government. Prison conditions were harsh and at times life threatening. Corruption in the police and judiciary persisted. The government infringed on citizens' right to privacy and did not respect the right to freedom of speech, the press, assembly, or association. Local officials at times interfered with religious freedom and restricted citizens' freedom of movement. Trafficking in persons, especially women and girls for prostitution, remained a problem, as did discrimination against minority groups, such as the Hmong. Workers' rights were restricted. The fate and whereabouts of five boys and one adult from a group of 27 Hmong deported from Thailand in 2005 remained unknown.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports of politically motivated killings by the government or its agents. There continued to be reports of actions by military units against small Hmong insurgent groups that resulted in deaths, including a November 20 attack in the Phu Bia area of Vientiane Province that reportedly killed two women and one child.

There were no developments in the cases of persons allegedly killed by the military or police in previous years, including the deaths in northeast Thailand of four foreign and two Thai citizens, all of Lao ethnicity and connected to the former Lao regime, in January, May, and December 2006; the April 2006 killing allegedly by troops in Vientiane Province of 26 unarmed Hmong, 25 of them women and children, who were foraging for food; the June 2006 killing allegedly by police in the former Saisomboun Special Zone of a Hmong farmer who was a cousin of a Hmong insurgent leader and the shooting of his six-year-old son; and the 2005 death of Protestant pastor Aloun Voraphom in Pak Kading District.

Clashes between insurgent and military forces resulted in an unknown number of deaths of civilians, insurgents, and military forces. During the year insurgents reportedly faced continued army pressure against their encampments in Bolikhamsai, Xieng Khouang, Luang Prabang, and Vientiane provinces and in the former Saisomboun Special Zone. According to insurgent reports, the military attacks and pressure resulted in deaths, injuries, and starvation of persons, mostly women and children.

b. Disappearance

On January 18, police reportedly abducted an ethnic Thai Dam resident of Oudomsay Province who had been an active leader in the Muang Houn Christian community. On January 23, a businessman in an ecotourism company in Luang Namtha Province was abducted after being told to report to the Luang Namtha district police station. The businessman reportedly had been outspoken in his criticism of what he viewed as excessive rubber planting in Luang Namtha. No information on the whereabouts of either individual was available at year's end.

Although the government began the year by continuing to deny that it had detained a group of 26 Hmong children deported from Thailand in December 2005, in March officials acknowledged that the government had custody of the 21 girls from the group, and in April the girls were returned to members of their extended families. Many sources indicated that the children had been held in various government detention facilities since their arrival in the country. At year's end no information on the five boys from the group or the woman who was accompanying the 26 children had been made available. In early May a senior official denied that the government had been detaining the remaining members of the group or knew of their whereabouts, although the official reaffirmed that the government would not give up its efforts to find the boys and promised they would not be harmed or prosecuted.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits the beating or torture of an arrested person. In practice members of the police and security forces sometimes abused prisoners, especially those suspected of associations with the insurgency; however, there were anecdotal reports that abuse continued to decrease, and during the year there were no verifiable reports of prisoner abuse.

Detainees have sometimes been subjected to beatings and long-term solitary confinement in completely darkened rooms, and in many cases they were detained in leg chains or wooden stocks for long periods. Former inmates reported that degrading treatment, the chaining and manacled of prisoners, and solitary confinement in small unlit rooms were standard punishments in larger prisons, while smaller provincial or district prisons employed manacles and chains to prevent prisoners from escaping.

Prison and Detention Center Conditions

Prison conditions varied widely but in general were harsh and occasionally life threatening. Prisoners in larger, state-operated facilities in Vientiane generally fared better than those in provincial prisons. Food rations were minimal, and most prisoners relied on their families for subsistence. Most of the larger facilities allowed prisoners to grow supplemental food in small vegetable gardens, although there were periodic reports that prison guards took food from prisoners' gardens. Prison wardens set prison visitation policies. Consequently, in some facilities families could make frequent visits, but in others visits were severely restricted. Credible reports indicated that ethnic minority prisoners and some foreign prisoners were treated particularly harshly. Former prisoners reported that incommunicado detention was used as an interrogation device and against perceived problem prisoners; however, there were fewer reports of its use. Although most prisons had some form of clinic, usually with a doctor or nurse on staff, medical facilities were extremely poor, and medical treatment for serious ailments was unavailable. Medicine had to be provided by outside sources. In some facilities prisoners could arrange treatment in outside hospitals if they could pay for the treatment and the expense of police escorts.

Prisons held both male and female prisoners, although they were placed in separate cells. In some prisons juveniles were held with adult prisoners. International organizations opposed the government's plan to construct a separate facility to serve juvenile detainees, arguing that juveniles would best be kept in segregated sections of adult prisons located close to their

homes and families. Most juveniles were in detention for narcotics offenses or petty crimes. Rather than send juveniles to prisons, authorities used drug treatment facilities as holding centers for juvenile offenders. While conditions in treatment facilities were generally better than those in prisons, conditions were nevertheless Spartan and lengths of detention indefinite.

The government did not permit regular independent monitoring of prison conditions. The International Committee of the Red Cross (ICRC) continued its longstanding efforts to establish an official presence in the country to carry out its mandate of monitoring prison conditions, but at year's end the government had not granted the ICRC's request. The government at times provided foreign diplomatic personnel access to some prisons and UN and nongovernmental organization (NGO) personnel access to some juvenile detention facilities, but such access was strictly limited.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention; however, in practice the government did not respect these provisions, and arbitrary arrest and detention persisted.

Role of the Police and Security Apparatus

The Ministry of Public Security (MoPS) maintains internal security but shares the function of state control with the Ministry of Defense's security forces and with LPRP and popular fronts. The MoPS includes local police, traffic police, immigration police, security police (including border police), and other armed police units. Communication police are responsible for monitoring telephone and electronic communications. The armed forces have domestic security responsibilities that include counterterrorism and counterinsurgency activities as well as control of an extensive system of village militias.

Impunity remained a problem, as did police corruption. Many police officers used their authority to extract bribes from citizens. Corrupt officials reportedly were rarely punished. In theory the government's National Audit Committee has responsibility for uncovering corruption in all government ministries, including the MoPS, but in practice the office's investigative activities were minimal. Lower-level officials on occasion were arrested and punished for corruption, including some customs officials during 2006.

In January in Vientiane, the MoPS' Inspection Department installed two complaint boxes for citizens to deposit written complaints. On March 1, the ministry announced that most complaints received had been against police officers misusing their powers to take bribes and that "several" police officials had been dismissed or moved to new positions. A senior MoPS official stated that filing grievances is a "basic right" of citizens and claimed that the new system, which was to be expanded nationwide, would help the MoPS "work more effectively." By year's end complaint boxes had also been installed in all provinces except Xekong and Attapeu, which were scheduled to have boxes installed in 2008.

Police are trained at the National Police Academy, but the extent to which the academy's curriculum discusses corruption was unknown. At the instruction of the LPRP, the government-controlled press rarely reported cases of official corruption.

Arrest and Detention

Police and military forces both had powers of arrest, although normally only police carried out these powers. Police agents exercised wide latitude in making arrests, relying on exceptions to the requirement that warrants are necessary except to apprehend persons in the act of committing crimes or in urgent cases. Police reportedly sometimes used arrest as a means to intimidate persons or extract bribes. There were reports that military forces occasionally arrested or detained persons suspected of insurgent activities.

There is a one-year statutory limit for detention without trial. The length of detention without a pretrial hearing or formal charges is also limited to one year. The Office of the Prosecutor General (OPG) reportedly made efforts to ensure that all prisoners were brought to trial within the one-year limit, but the limit sometimes was ignored. The OPG must authorize police to hold a suspect pending investigation. Authorization is given in three-month increments, and a suspect must be released

after a maximum of one year if police do not have sufficient evidence to bring charges. There is a bail system, but its implementation was arbitrary. Prisoner access to family members and a lawyer was not assured. Incommunicado detention was a problem; however, it was used less frequently than in the past.

A statute of limitations applies to most crimes. Alleged violations of criminal laws at times led to lengthy pretrial detentions without charge and minimal due process protection of those detained. Authorities sometimes continued to detain prisoners after they had completed their sentences, particularly in cases where prisoners were unable to pay court fines. In other cases prisoners were released contingent upon their agreement to pay fines at a later date. There were no reports that police administratively overruled court decisions by detaining exonerated individuals.

On February 9, authorities released two ethnic minority Christians arrested in August 2006 in Savannakhet Province's Xephone District, reportedly for being outspoken about their Christian faith and for their perceived pro-Western views.

Early in the year authorities released one of 13 ethnic Khmu Christians arrested in Khon Kean Village, Vientiane Province, in late 2006. On May 16, nine others were released after being held at a police detention facility in Hin Heup, Vientiane Province, and receiving "reeducation" on the government's policy on religion. The three pastors from the group were released in early December.

After an insurgent attack on an army camp near Vang Vieng in Vientiane Province in February, Vang Vieng officials reportedly allowed 10 local Hmong and Khmu Christian families to move from Vientiane Province to neighboring Bokeo, Luang Namtha, and Oudomsay provinces, although the Vang Vieng officials did not provide the legal documents required for such a move. After a short period, the Vang Vieng officials reportedly required the families to return to Vang Vieng, where the male heads of family--seven Hmong and three Khmu--reportedly were detained at Vientiane Province's Thong Harb Prison. On August 4, three pastors went to the prison to ask why the men were being held. The pastors themselves were then imprisoned but released on October 13 after each paid a fine of \$100 (960,000 kip). Of the original 10 detainees, one reportedly died, and the other nine remained in Thong Harb Prison at year's end.

e. Denial of Fair Public Trial

The law provides for the independence of the judiciary; however, senior government and party officials influenced the courts, although to a lesser degree than in the past. Impunity was a problem, as was corruption. Reportedly, some judges could be bribed. The National Assembly may remove judges from office for "impropriety"; however, according to government sources, since 1991 only one judge at the district level has been removed for improper behavior.

The people's courts have four levels: district courts, municipal and provincial courts, a court of appeals, and the Supreme People's Court. In 2004 the Supreme Court established a commercial court, family court, and juvenile court. Decisions of the lower courts are subject to review by the Supreme Court, but military court decisions are not. There are instances in which civilians may be tried in military courts, but there were no reports of such trials during the year.

Trial Procedures

Juries are not used. Trials that involve certain criminal laws relating to national security, state secrets, children under the age of 16, or certain types of family law are closed. The law provides for open trials in which defendants have the right to defend themselves with the assistance of a lawyer or other persons. Defense attorneys are provided at government expense only in cases involving children, cases for which there is the possibility of life imprisonment or the death penalty, and cases that are considered particularly complicated, such as those involving foreigners. The law requires that authorities inform persons of their rights and states that defendants may have anyone assist them in preparing written cases and accompany them at their trials; however, only the defendant may present oral arguments at a criminal trial. Defendants are permitted to question witnesses and can present witnesses and evidence on their own behalf.

Court litigants may select members of the Lao Bar Association to represent them at trials. The association is nominally independent but receives some direction from the Ministry of Justice. For several reasons, including a lack of funds, shortage of attorneys, and the general perception that attorneys cannot affect court decisions, most defendants did not choose to have attorneys or trained representatives. To enhance popular understanding of the law and legal sector, in December the bar association launched a three-year project, funded by a grant from The Asia Foundation, to conduct the first mobile legal clinics in the country, operating from legal aid clinic bases in Champasak and Oudomsay provinces. The project was also intended to enhance the institutional capacity of the bar association itself.

Under the law defendants enjoy a presumption of innocence. However, in practice judges usually decided guilt or innocence in advance, basing their decisions on the result of police or the prosecutor's investigation reports. Most trials, including criminal trials, were little more than pro forma examinations of the accused and review of the evidence. Defendants have the right of appeal.

All of the country's 450 judges were LPRP members. Most had only basic legal training, and many provincial and district courts had few or no reference materials available for guidance. The National Assembly's Legal Affairs Committee occasionally reviewed Supreme Court decisions for "accuracy" and returned cases to the court or the OPG for review when the committee believed decisions were reached improperly.

Political Prisoners and Detainees

There were three well-known political prisoners. Colonel Sing Chanthakoumane, an official of the pre-1975 government, was serving a life sentence after a 1990 trial that was not conducted according to international standards. Sing reportedly was very ill, but the government ignored numerous requests to release him on humanitarian grounds. At least two persons, Thongpaseuth Keuakoun and Seng-aloun Phengboun, who were arrested in 1999 for attempting to organize a prodemocracy demonstration in Vientiane, continued to serve 10-year sentences for antigovernment activities.

In December 2006 three prisoners were pardoned and released from prison--Thongdai of Meune Manh Village, Feuang District, Vientiane Province; Norneng Siva of Tham Krabork Village, Salaboury District, Trad Province, Thailand; and Herporyang, of Lao Ou Village, Chiang Rai District, Chiang Rai Province, Thailand.

Another 10 persons also described as political prisoners had their sentences reduced in December 2006: Khamlaab, of Meung Va Tha Village, Sikhottabong District, Vientiane Capital; Phavanh, of Nongbone Village, Saysettha District, Vientiane Capital; Thongsai of Nakhandai Village, Lakhonepheng District, Saravane Province; Sounthala, of Laksi Village, Lakhonepheng District, Saravane; Senglith, of Champi Village, Sanasomboun District, Champasak Province; Bounnar, of Nongveng Village, Lakhonepheng District, Saravane; Thitfanh, of Laksong Village, Saravane District, Saravane; Thongchanh, of Thin Village, Xay District, Oudomsay Province; and Lao Cao Va and Lao Tou Va, both of Phiangthor Village, Houn District, Oudomsay.

In addition, based on information provided by former prisoners, a small but unknown number of persons, particularly Hmong suspected of insurgent activities, were detained for allegedly violating criminal laws concerning national security. Other persons may have been arrested, tried, and convicted under laws relating to national security that prevent public court trials, but there was no reliable method to ascertain their total number.

Civil Judicial Procedures and Remedies

The law provides for independence of the judiciary in both criminal and civil matters; however, enforcement of court orders remained a problem. If civil or political rights are violated, one may seek judicial remedy in a criminal court or pursue an administrative remedy from the National Assembly under the Law on Public Complaints. In regard to social and cultural rights, one may seek remedy in a civil court.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

The law generally protects privacy, including that of mail, telephone, and electronic correspondence, but the government reportedly violated these legal protections when there was a perceived security threat.

The law prohibits unlawful searches and seizures. By law police must obtain search authorization from a prosecutor or a panel of judges, but in practice police did not always obtain prior approval, especially in rural areas. Security laws allow the government to monitor individuals' movements and private communications, including via cellular telephones and e-mail.

The MoPS regularly monitored citizens' activities through a surveillance network that included a secret police element. A militia in urban and rural areas, operating under the aegis of the armed forces, shared responsibility for maintaining public order, reporting "undesirable elements" to police, and providing security against insurgents in remote rural areas. Members of the LPRP's front organizations, including the Lao Women's Union, the Youth Union, and the Lao Front for National Construction (LFNC), also played a role in monitoring the citizenry at all levels of society.

The government continued its program to relocate highland slash-and-burn farmers, most of whom belonged to ethnic minority groups, to lowland areas in keeping with its plan to end opium production and slash-and-burn agriculture. In some areas district and provincial officials used persuasion to convince villagers to move to relocation areas. In other areas villagers relocated spontaneously to be closer to roads, markets, and government services. Although the government's resettlement plan called for compensating farmers for lost land and providing resettlement assistance, this assistance was not available in many cases or was insufficient to give relocated farmers the means to adjust to their new homes and new way of life. Moreover, in some areas farmland allotted to relocated villagers was of poor quality and unsuited for intensive rice farming. The result was that some relocated villagers experienced increased poverty, hunger, malnourishment, susceptibility to disease, and mortality rates. The government relied on assistance from NGOs, bilateral donors, and international organizations to cover the needs of those recently resettled, but such assistance was not available in all areas.

The government allows citizens to marry foreigners only with prior approval. Premarital cohabitation is illegal. Although the government routinely granted permission to marry, the process was lengthy and burdensome and offered officials the opportunity to solicit bribes. The government may annul marriages to foreigners undertaken without government approval, with both parties subject to arrest and fines.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press; however, in practice the government severely restricted political speech and writing. The government also prohibited most public criticism that it deemed harmful to its reputation. The law forbids slandering the state, distorting party or state policies, inciting disorder, or propagating information or opinions that weaken the state. Citizens who registered legitimate complaints with government departments generally did not suffer reprisals.

The state owned and controlled most domestic print and electronic media. Local news in all media reflected government policy. Although domestic television and radio broadcasts were closely controlled, the government made no effort to interfere with television and radio broadcasts from abroad. Many citizens routinely watched Thai television or listened to Thai radio, including news broadcasts from international news sources. Citizens had 24-hour access to international stations via satellite and cable television. The government required registration of receiving satellite dishes and payment of a one-time licensing fee, largely as a revenue-generating measure, but otherwise made no effort to restrict their use. A private company provided cable television service to subscribers in Vientiane and other cities that offered Thai and international news and entertainment programs without restriction from authorities.

The government permitted the publication of several privately owned periodicals of a nonpolitical nature, including periodicals specializing in business, society, and trade topics. While government officials did not review in advance all articles in these periodicals, they reviewed them after publication and could impose penalties on periodicals that carried articles that did not

meet government approval. A few Asian and Western newspapers and magazines were available through private outlets that had government permission to sell them.

Foreign journalists were required to apply for special visas and were restricted in their activities. Authorities did not allow journalists free access to information sources, but journalists often were allowed to travel without official escorts. When escorts were required, journalists reportedly had to pay for their services.

Authorities prohibited the dissemination of materials deemed indecent, subversive of "national culture," or politically sensitive. Any person found guilty of importing a publication considered offensive to the national culture faced a fine or imprisonment for up to one year.

Internet Freedom

The government controlled all domestic Internet servers and retained the ability to block access to Internet sites that were deemed pornographic or critical of government institutions and policies. The Lao National Internet Committee, under the umbrella of the Prime Minister's Office, administered the Internet system. The government sporadically monitored Internet usage to ensure conformity with the 1997 "Internet Decree"; the prime minister's Decree 166 on the "Organization of a Network and Importation, Use, and Control of the Internet System"; and the prime minister's 2007 Decree 141 on "Rules and Regulations of Internet Services in Lao PDR."

The Prime Minister's Office required all Internet service providers to submit quarterly reports and link their gateways to facilitate monitoring, but the government's ability to enforce such regulations appeared to be limited. The government regularly blocked a few Web sites, operated mostly by Hmong groups abroad. However, the government did not block any major foreign news sources, nor did it have the capability to monitor Web logging (blogging) activity or the establishment of new Web sites. Fearful of monitoring by the authorities, many citizens used the Internet services of a growing number of Internet cafes rather than personal computers for private correspondence. Citizen users are required to register with the authorities, which may have caused some to self-censor their Internet behavior.

Academic Freedom and Cultural Events

The law provides for academic freedom, but in practice the government imposed restrictions. The Ministry of Education tightly controlled curriculums in schools, including private schools and colleges.

Both citizen and noncitizen academic professionals conducting research in the country may be subject to restrictions on travel, access to information, and publication. The government exercised control, via requirements for exit stamps and other mechanisms, over the ability of state-employed academic professionals to travel for research or obtain study grants, but it actively sought such opportunities worldwide and approved virtually all such proposals.

Films and music recordings produced in government studios were required to be submitted for official censorship; however, uncensored foreign films and music were available in video and compact disc format. The Ministry of Information and Culture repeatedly attempted to impose restrictions aimed at limiting the influence of Thai culture in Lao music and entertainment, but these restrictions were widely ignored and appeared to have little effect.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly; however, the government restricted this right in practice. The law prohibits participation in demonstrations, protest marches, or other acts that cause "turmoil or social instability." Participation in such acts is punishable by prison terms of one to five years.

Freedom of Association

The law provides citizens the right to organize and join associations, but the government restricted this right in practice. The government registered and controlled all associations and their activities. Political groups other than popular front organizations approved by the LPRP are forbidden. Although the government restricted many types of formal professional and social associations, informal nonpolitical groups were able to meet without hindrance. The government permitted the creation of some associations of a business nature. The government also permitted the establishment of nonprofit organizations designed to promote science and agriculture. The Prime Minister's Office oversees the small but growing number of organizations that have registered to conduct activities in these areas.

c. Freedom of Religion

The constitution provides for freedom of religion; however, authorities, particularly at the local level, interfered with this right.

Although the state is secular, the LPRP and the government support Theravada Buddhism, which is followed by more than 40 percent of the population and is the faith of nearly all of the ethnic Lao population. The law does not recognize a national religion, but the government's support for and oversight of temples and other facilities and its promotion of Buddhist practices give Buddhism an elevated status among the country's religions.

The LFNC has recognized two Protestant groups: the Lao Evangelical Church (LEC), which is the umbrella Protestant church, and the Seventh-day Adventist Church. The LFNC refused to recognize congregations, such as the Methodists, who operated independently.

By year's end all 13 ethnic Khmu Christians arrested in Khon Kean Village, Vientiane Province, in late 2006 had been released (see section 1.d.).

In the government amnesty at the end of 2006, LEC member Thongchanh, sentenced to 15 years in prison in 1999 for treason and sedition, had his sentence reduced to seven years.

The constitution prohibits "all acts of creating division of religion or creating division among the people." The LPRP and the government used this to justify restrictions on religious practice by all religious groups, including the Buddhist majority and animists. Although official pronouncements acknowledged the positive benefits of religion, they also emphasized its potential to divide, distract, or destabilize. The constitution notes that the state "mobilizes and encourages" Buddhist monks and novices as well as priests of other religions to participate in activities "beneficial to the nation and the people."

Authorities continued to be suspicious of non-Buddhist religious communities, including some Christian groups. Local authorities, apparently in some cases with encouragement from government or LPRP officials, singled out Protestant groups, both those officially recognized by the LFNC and those that were not recognized, as targets of abuse.

Many minority religious leaders complained that Decree 92, which is intended among other things to permit activities such as proselytizing and printing religious material, was too restrictive in practice. They maintained that the requirement to obtain permission, sometimes from several different offices, for a broad range of activities greatly limited their freedom.

The government's tolerance of religion varied by region. In most parts of the country, members of long-established congregations had few problems practicing their faith. Authorities in some areas sometimes advised new congregations to join the LEC, despite clear differences between the groups' beliefs. However, in other areas authorities allowed congregations not affiliated with the LEC or Seventh-day Adventists to continue their worship unhindered. Authorities in some provinces used threats of arrest as a means of intimidating local religious communities. Local officials in some parts of the country also threatened to withhold government identification cards and household registration documents as well as deny educational benefits to those who did not give up their religious beliefs.

The LFNC often sought to intervene with local governments in cases where minority religious practitioners, particularly Christians, had been harassed or mistreated. The LFNC reportedly was growing more proactive about solving problems by educating persons to respect the law and regulations as well as training local officials to respect religious believers. In May the LFNC's director of religious affairs held a nation-wide seminar that included attendance by representatives of all four approved religions (Buddhist, Christian, Muslim, and the Baha'i) to review religious rights given under the constitution and in the law and to discuss resolving religious problems. Local officials such as district chiefs, district police chiefs, and LFNC district-level representatives were to take back lessons learned to be applied locally. In July the LFNC held a second meeting for religious leaders and officials from Vientiane Municipality and Vientiane Province.

In January a visiting LFNC official and the village chief advised residents of Houaysay Noi Village in Bokeo Province that they could believe as they wished but would not be allowed to construct a church. The officials also told the 19 Christian families in the village that they could continue to meet at their house church as long as they used no visible religious symbols that could identify the house as an "official religious structure." At year's end local officials continued to refuse to issue a construction permit.

The Roman Catholic Church was unable to operate effectively in the northern part of the country, and church members living there had only intermittent contact with the bishop of Luang Prabang, who lived in Vientiane. The small Catholic communities in Luang Prabang, Sayaboury, and Bokeo provinces sporadically held services in homes, but there were no priests in the areas, and pastoral visits from Vientiane were infrequent.

During the year the four Catholic priests ordained in 2006, the first new priests allowed by the government in 30 years, took up their new duties. On December 29, the Catholic Church was allowed to ordain an additional priest at Paksane District, Bolikhamsai Province.

Followers of the Baha'i Faith were able to practice their religion without hindrance in Vientiane City and in Savannakhet and Champasak provinces. Small Baha'i groups faced fewer restrictions from local authorities than in the past. The small Muslim community in Vientiane was able to practice its religion without hindrance.

Animists generally experienced no interference from the government in their religious practices, which varied extensively among the approximately 70 identified ethnic groups and tribes in the country. However, the government actively discouraged animist practices that it regarded as outdated, unhealthful, or illegal, such as the practice in some tribes of infanticide of those with birth defects or of keeping the bodies of deceased relatives in homes.

On January 18, in Luang Namtha's Long District, local and district officials pressured 23 ethnic Yao and Hmong Christian families to sign, under threat of being expelled from their village, a document renouncing their faith. Although some refused to sign, no one was forced to leave the village, and at year's end there was no report that any action was taken against the families.

More than 200 Christians--mostly ethnic Yao, Khmu, and Hmong--in Luang Namtha's Xunya Village were regularly pressured by police and reportedly were not allowed to meet for worship services. LFNC officials visited Luang Namtha Province in February to discuss the Xunya situation and educate local Christians of their rights and the requirements for construction of new churches; nonetheless, reports indicated that problems intensified in March, and district officials also took steps to try to prevent Xunya's Christians from worshipping. Representatives from a foreign-based religious group, accompanied by two LEC representatives, attempted to visit Xunya in early April but were prevented from doing so by local police and military personnel. Although the LFNC in Vientiane issued a document on April 2 supporting the right of the Christians in Xunya to worship and sent the document to LFNC and police officials in Luang Namtha, the impact of the April 2 document reportedly was negligible. At year's end tensions remained high between local officials and village Christians.

In Bolikhamsay Province, village and district officials told more than 100 Christians in Nam Deua Village in Pakading District that they could not believe in Christianity because it was an "American" religion. The officials threatened them with expulsion, but at year's end none had been expelled.

Local officials in the villages of Kha and Porhai, both in Huaphanh Province, also pressured local Hmong families not to follow Christianity. At year's end there were no reports of arrests or other actions against Christians in these villages. Christians in other areas of Huaphanh, including Sam Neua District, reportedly were concerned that local officials were prone to blame any security incidents on the Hmong Christian community.

The government strictly prohibited foreigners from proselytizing, although it permitted foreign NGOs with religious affiliations to work in the country. Foreigners who distributed religious material were subject to arrest or deportation. Although Decree 92 permits proselytizing by religious practitioners provided they obtain permission for such activities from the LFNC, the LFNC did not grant such permission, and persons found evangelizing risked harassment or arrest.

Decree 92 authorizes the printing of religious material, provided permission is obtained from the LFNC. The government permitted the printing, import, and distribution of Buddhist religious material. While Christian and Baha'i groups were able to print other religious materials, the government did not allow the printing of Bibles. Special permission was required for their importation for distribution purposes. LEC officials requested permission to import 1,000 Thai-language Bibles early in the year and eventually received permission to import 350.

Societal Abuses and Discrimination

For the most part, the various religious communities coexisted amicably. There was no known Jewish community in the country, and there were no reports of anti-Semitic acts.

For a more detailed discussion, see the [2007 International Religious Freedom Report \(/2009-2017.state.gov/j/drl/rls/irf/2007/\)](https://2007.state.gov/j/drl/rls/irf/2007/).

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The law provides for freedom of movement within the country, foreign travel, emigration, and repatriation, but in practice the government imposed some restrictions. Citizens who traveled across provincial borders are not required to report to authorities; however, in designated security zones officials occasionally set up roadblocks and checked travelers' identity cards. Citizens who sought to travel to contiguous areas of neighboring countries could do so with travel permits generally easily obtained from district offices. Those wishing to travel farther abroad were required to apply for passports; however, officials at the local level sometimes denied some persons permission to apply for passports. Early in the year the government repealed the requirement that citizens obtain exit visas for travel abroad.

Authorities restricted access by foreigners to certain areas where antigovernment insurgents continued to operate.

The government did not use forced exile; however, a small group of persons, who fled the country during the 1975 change in government and were tried in absentia for antigovernment activities, did not have the right of return.

In the years following their return, citizens who had temporarily sought refuge abroad were subject to greater scrutiny by the authorities than were other citizens. However, these returnees have largely reintegrated and no longer received unusual attention from officials. Many who fled after the 1975 change of government have returned to visit relatives; some have stayed and gained foreign resident status, and some have reclaimed citizenship successfully.

Protection of Refugees

The country is not a signatory to the 1951 UN Convention relating to the Status of Refugees or its 1967 protocol, but the Nationality Law provides for asylum and the protection of stateless persons. In practice the government did not provide protection against refoulement, the return of persons to a country where there is reason to believe they feared persecution, and did not routinely grant refugee or asylum status. However, the government showed some flexibility in dealing pragmatically with individual asylum cases.

The government continued to refuse the request from the Office of the UN High Commissioner for Refugees (UNHCR) to reestablish a presence in the country to monitor the reintegration of former refugees who returned under the UNHCR resettlement program. The government stated that the UNHCR's mandate expired in 2001 and all former refugees had been successfully reintegrated. However, there were estimates that since 2005 more than 2,000 Hmong had surrendered, mainly in the provinces of Xieng Khouang, Bolikhamsai, and Vientiane (part of which composed the former military-administered Saisomboung Special Zone).

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens do not have the right to change their government. Although the constitution outlines a system composed of executive, legislative, and judicial branches, the LPRP controlled governance and the leadership at all levels through its constitutionally designated "leading role."

Elections and Political Participation

The law provides for a representative national assembly, elected every five years in open, multiple-candidate, fairly tabulated elections, with voting by secret ballot and universal adult suffrage. However, the constitution legitimizes only a single party, the LPRP; all other political parties are outlawed. Election committees, appointed by the National Assembly, must approve all candidates for local and national elections. Candidates do not need to be LPRP members, but in practice almost all were.

The National Assembly chooses members of the Standing Committee, generally based on the previous Standing Committee's recommendations. Upon this committee's recommendation, the National Assembly elects or removes the president and vice president. The Standing Committee has the mandate to supervise all administrative and judicial organizations and the sole power to recommend presidential decrees. It also appoints the National Election Committee, which has powers over elections, including approval of candidates. Activities of the Standing Committee were not fully transparent.

The National Assembly, upon the president's recommendation, elects the prime minister and other ministers of the government. The 115-member National Assembly, elected in 2006 under a system of universal suffrage for a five-year term, approved the LPRP's selection of the president and ratified the president's selection of a new prime minister and cabinet at its 2006 inaugural session.

The National Assembly may consider and amend draft legislation, but only permanent subcommittees of the National Assembly may propose new laws. The law gives the right to submit draft legislation to the Standing Committee and the ruling executive structure.

There were 29 women in the 115-member National Assembly, including two on the nine-member Standing Committee. The 55-member LPRP Central Committee included four women, one of whom was also a member of the 11-member Politburo. Of 12 ministers in the Prime Minister's Office, two were women: one headed a new Water and Environment Authority, and the other chaired the Public Administration and Civil Service Authority. The minister of labor and social welfare was also a woman.

There were 23 members of ethnic minorities in the National Assembly, and three of the 28 cabinet ministers were members of ethnic minority groups.

Government Corruption and Transparency

Prior to taking their designated positions, senior officials are required to disclose their personal assets to the LPRP's Party Inspection Committee. The committee inspects the officials' assets before and after the officials have been in their positions. On December 21, Minister of Public Security Thongbanh Seng-aphone, at the Fourth International Day Against Corruption

meeting, highlighted the government's objective to combat corruption by implementing policies and passing new laws on state audits, accounting, and state inspections.

Nonetheless, there was a widespread public perception that many officials within the executive and judicial branches of the government were corrupt. Wages of all government officials were extremely low, and many officials, such as police members, had broad powers that they could easily abuse. Some action was reportedly taken against corrupt customs officials in 2006, and a new system of "complaint boxes" in Vientiane led to several police officials being dismissed or transferred early in the year. The LPRP used its control of government authorities and media to block public censure of corrupt officials who were party members.

There are no laws providing for public access to government information, and in general the government closely guarded the release of any information pertaining to its internal activities, deeming such secrecy necessary for "national security."

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

There were no domestic human rights NGOs, nor is there a formal procedure for registering such groups.

The government only sporadically responded in writing to requests for information on the human rights situation from international human rights organizations. However, the government maintained human rights dialogues with several foreign governments and continued to receive training in UN human rights conventions from several international donors. In June a U.S. professor held a series of six conferences, lectures, and roundtable events on trafficking in persons for more than 150 officials and students. In October two other U.S. professors presented lectures on international human rights institutions and different systems of government to approximately 65 officials and also gave a lecture to 70 students from the National University of Laos.

The government maintained contacts with the ICRC and continued to translate international human rights and humanitarian law conventions with ICRC support. Since the 2001 closing of the UNHCR office, the government has not permitted UNHCR personnel to conduct monitoring visits to the country.

A human rights division in the Ministry of Foreign Affairs has responsibility for investigating allegations of human rights violations. However, in practice the division apparently had no authority to perform or order other ministries to undertake investigations. The ministry on occasion responded to inquiries from the UN regarding its human rights situation.

The government at times permitted limited access by international organizations and NGOs to provide food and other material assistance to former insurgents who had accepted government resettlement offers.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The constitution provides for equal treatment under the law for all citizens without regard to sex, social status, education, faith, or ethnicity. The 1990 Family Law also includes provisions providing for equal treatment without regard to social status. The 2004 Law on Women establishes penalties for crimes against women that are significantly more severe than those contained in the criminal code. The 2004 law defines trafficking and violence against women and children as criminal actions and provides for the protection of victims internally and by international agencies. The government at times took action when well-documented and obvious cases of discrimination came to the attention of high-level officials, although the legal mechanism whereby citizens may bring charges of discrimination against individuals or organizations was neither well developed nor widely understood among the general population.

Women

Rape reportedly was rare. Article 119 of the penal code criminalizes rape, with punishment set at three to five years' imprisonment. Sentences are significantly longer and may include capital punishment if the victim is under 18 or is seriously injured or killed. In rape cases that were tried in court, defendants generally were convicted with penalties ranging from three years' imprisonment to execution.

Spousal abuse is illegal. There were reports that domestic violence against women occurred, but such violence did not appear to be widespread. Penalties for domestic abuse, including battery, torture, rape, and detaining persons against their will, may include both fines and imprisonment. There was no evidence of police or judicial reluctance to act on domestic abuse cases.

Prostitution is illegal, with penalties ranging from three months to one year in prison. However, in practice antiprostitution laws generally were not enforced, and in some cases officials reportedly were involved in the trade. Trafficking in women and girls for prostitution, both to Thailand and internally, was a problem.

Sexual harassment was rarely reported, and the actual extent was difficult to assess. Although sexual harassment is not illegal, "indecent sexual behavior" toward another person is illegal and punishable by six months to three years in prison.

The law provides for equal rights for women, and the Lao Women's Union operated nationally to promote the position of women in society. The law prohibits legal discrimination in marriage and inheritance. Discrimination against women did not appear common; however, varying degrees of traditional, culturally based discrimination persisted, with greater discrimination practiced by some hill tribes. Many women occupied responsible positions in the civil service and private business, and in urban areas their incomes were often higher than those of men.

Children

Although the government has made children's education and health care a priority in its economic planning, funding for children's basic health and educational needs remained inadequate, and the country had a very high rate of infant and child mortality.

Education is free and compulsory through the fifth grade; however, high fees for books and supplies and a general shortage of teachers in rural areas prevented many children from attending school. Although not reliable, 2005 census data claimed that 67 percent of primary school-age children, 81 percent of middle school-age children, and approximately 41 percent of high school-age children were enrolled in school. In contrast, the UN Development Program estimated that almost 40 percent of children did not attend primary school and only 10 percent entered secondary school. There were significant differences among the various ethnic groups in the educational opportunities offered to boys and girls. Although the government's policy is to inform ethnic groups on the benefits of education for all children, some ethnic groups do not consider education for girls either necessary or beneficial. While figures were not reliable, literacy rates for girls were approximately 10 percent lower than for boys in general. However, according to government policy, an equal number of men and women were accepted by the national university.

According to the Ministry of Public Health, boys and girls had equal access to public medical care.

The law prohibits violence against children, and violators were subject to stiff punishments. Reports of the physical abuse of children were rare.

Trafficking in girls for prostitution and forced labor was a problem. Other forms of child labor generally were confined to family farms and enterprises.

Trafficking in Persons

The law prohibits abduction and trade in persons, detaining persons against their will, procuring persons for commercial sex, and prostitution; however, there were reports that persons, particularly women and girls, were trafficked to, from, or within the country.

The country was primarily a country of origin for trafficking in persons, including girls ages 13 to 16, and, to a much lesser extent, a country of transit. The primary destination country was Thailand. There was almost no effective border control. Studies conducted between 2004 and 2006 indicated that the scale of economic emigration, mostly by young persons between the ages of 15 and 30, was far greater than previously supposed. Approximately 7 percent of the total sample population in three southern provinces migrated, primarily to Thailand, either seasonally or permanently, and approximately 55 percent of the migrants were female. The Thai Ministry of Labor estimated that at least 250,000 Lao workers were employed in Thailand, of whom at least 80,000 were unregistered. An unknown number of these persons were trafficked, although one study indicated that two-thirds of the Lao citizens in Thailand were trafficked after crossing the border. Victims trafficked within Laos were primarily from the northern provinces, such as Houaphan and Xieng Khouang, and were trafficked for sexual exploitation or factory work in cities farther south. According to one study, a very small number of female citizens also were trafficked to China to become brides for Chinese men.

Most trafficking victims were lowland Lao, although small numbers of minority women also were victimized by traffickers, and the number of minority trafficking victims was increasing. Minority groups were particularly vulnerable because they did not have the cultural familiarity or linguistic proximity to Thai that Lao-speaking workers could use to protect themselves from exploitative situations. A much smaller number of trafficked foreign citizens, especially Burmese and Vietnamese, transited through the country.

Many labor recruiters in the country were local persons with cross-border experience and were known to the trafficking victims. For the most part, they had no connection to organized crime, commercial sexual exploitation, or the practice of involuntary servitude, but their services usually ended once their charges reached Thailand, where the victims were exploited by more-organized trafficking groups.

Before the antitrafficking provisions in the 2004 Law on Women went into effect in 2006, the government had prosecuted only a handful of traffickers, according to available information. All were prosecuted under other criminal statutes. The government, working with UN agencies, NGOs, and some foreign governments, disseminated the law to the public, local officials, and law enforcement personnel. During the year the government hosted workshops and training sessions for journalists, policewomen, provincial authorities, ministries involved with road construction, the military, and other LPRP and government officials.

According to information from international organizations, 27 persons were investigated for cross-border trafficking-related offenses involving 139 victims between September 2006 and year's end, leading to 14 convictions. At year's end there were 38 persons under investigation for human trafficking. Lao law enforcement officers participated in joint investigations with their Thai counterparts from northeast Thailand and worked with Vietnamese law enforcement on the new transport routes through the south-central part of the country.

There were few reports of official involvement in trafficking; however, anecdotal evidence suggested that local officials knew of trafficking activities, and some may have profited from them.

The government became more involved in countering the worst forms of trafficking and the exploitation of underage persons, chiefly through cooperation with international NGOs working on trafficking problems. In addition, the government increased its efforts to raise the profile of the trafficking problem by educating the population on the dangers of trafficking, using the media and public appearances by senior leaders. On December 7, the deputy prime minister and minister of national defense, Lieutenant General Douangchay Phichit, warned that human trafficking and sexual exploitation of children were serious problems and stated that combating them required the cooperation of the both the public and private sectors.

The Ministry of Labor and Social Welfare (MLSW) had a unit devoted to children with special needs, including protection of trafficking victims and prevention of trafficking. The MLSW also maintained two small-scale repatriation assistance centers for returned victims of trafficking, but their effectiveness was limited by a small budget, inadequate international assistance, and a lack of trained personnel. According to the MLSW, the transit centers have assisted 1,044 victims of human trafficking since 2001, including 268 victims identified from January to July. These victims were formally identified as trafficking victims at shelters in Thailand and were repatriated and assisted under special regulations for victims of human trafficking. The centers also served victims of domestic violence.

The MLSW and the Lao Women's Union, in conjunction with NGOs, conducted validation studies on antitrafficking information campaigns and reintegration programs and began to refine antitrafficking projects, with a particular focus on tracking victims' reintegration and trying to provide economic opportunities for victims that would persuade them not to cross the border illegally again to look for work. Financial constraints limited the cash contributions the government could make, but it offered the services of ministerial personnel and meeting venues to NGOs doing antitrafficking work.

The NGO Assistance for Women in Distressing Situations (AFESIP) maintained a shelter in Vientiane Municipality to aid victims of human trafficking and sexual exploitation, particularly those in need of long-term counseling and assistance. AFESIP also monitored reintegration for victims who returned directly to their communities or participated in vocational training at other locations. Working with the MLSW, AFESIP opened a second beauty parlor in Sayaboury Province to provide training and economic support for victims of internal or international trafficking. The NGO and MLSW began construction of a second shelter in Savannakhet Province. The Lao Women's Union also opened a shelter in Vientiane for victims of trafficking and domestic violence. Both the AFESIP and LWU shelters received victims identified and repatriated through MLSW repatriation centers.

In July 2006 the government reissued a 2004 order to stop the practice of fining returnees and followed up with training for local immigration officials in some areas. The 2006 order and a campaign to educate provincial authorities, including workshops for officials throughout the year, greatly assisted in reducing the practice of fining trafficking victims and migrant laborers, as local and immigration authorities can no longer "punish" victims for a violation of domestic law in failing to procure an exit permit. In addition, the International Organization for Migration and NGOs expressed concerns that formally identified trafficking victims, some of whom had been awarded money through the Thai court systems, had funds stolen from them after returning. With support from UN Children's Fund, the National Commission for Mothers and Children continued an active program of support for victims.

The Lao Women's Union and the Youth Union, both party-sanctioned mass organizations, offered educational programs designed to inform girls and young women about the schemes of recruiters for brothels and sweatshops in neighboring countries and elsewhere. These organizations were most effective in disseminating information at the grassroots level.

Persons with Disabilities

The constitution provides citizens protection against discrimination but does not specify that these protections apply to persons with disabilities. Regulations promulgated by the MLSW and the Lao National Commission for the Disabled protect such persons against discrimination; however, the regulations lack the force of law. The law does not mandate accessibility to buildings or government services for persons with disabilities, but the MLSW has established regulations regarding building access and built some sidewalk ramps in Vientiane.

According to the Ministry of Justice, the government supports the rights of all persons, including those with disabilities, to vote and participate in civic affairs.

National/Racial/Ethnic Minorities

The law provides for equal rights for all minority citizens, and there is no legal discrimination against them; however, societal discrimination persisted. Moreover, critics charged that the government's resettlement program for ending slash-and-burn agriculture and opium production adversely affected many ethnic minority groups, particularly in the north. The program requires that resettled persons adopt paddy rice farming and live in large communities, ignoring the traditional livelihoods and community structures of these minority groups. International observers questioned whether the benefits promoted by the government--access to markets, schools, and medical care for resettled persons--outweighed the negative impact on traditional cultural practices. Even some minority groups not involved in resettlement, especially those in remote locations, faced difficulties, believing they had little voice in government decisions affecting their lands and the allocation of natural resources from their areas.

The Hmong are one of the largest and most prominent highland minority groups. There were a number of Hmong officials in the senior ranks of the government and the LPRP, including one Politburo member and five members of the LPRP Central Committee. However, societal discrimination persisted against the Hmong, and some Hmong believed their ethnic group could not coexist with the ethnic Lao population. This belief fanned separatist or irredentist beliefs among some Hmong. In recent years the government has focused limited assistance projects in Hmong areas to address regional and ethnic disparities in income. The government also provided for Hmong and Khmu language radio broadcasts but reportedly denied Khmu requests to use the Lao script as their official written language. The Khmu language does not have its own writing system.

Although there were very few substantiated reports of attacks by Hmong insurgent groups during the year, the government leadership maintained its suspicion of Hmong political objectives. Security forces continued operations to isolate and defeat or force the surrender of scattered pockets of insurgents and their families in remote jungle areas.

For several years the government has offered "amnesty" to insurgents who surrender to authorities. Since 2005 an estimated 2,000 have surrendered. While there were no reports of violence against those who surrendered, the government continued to deny international observers permission to visit these groups, and their status and welfare remained unknown at year's end. Because of their past activities, amnestied insurgents continued to be the focus of official suspicion and scrutiny.

The government generally refused offers from the international community to assist surrendered insurgents directly, but it allowed some aid from the UN and other international agencies to reach them as part of larger assistance programs.

Other Societal Abuses and Discrimination

Within lowland Lao society, despite wide and growing tolerance of homosexual practices, societal discrimination persisted against such practices.

There was no official discrimination against persons with HIV/AIDS, but social discrimination existed. The government actively promoted tolerance of those with HIV/AIDS, and during the year it conducted awareness campaigns to educate the population and promote understanding toward such persons.

Section 6 Worker Rights

a. The Right of Association

Under the law workers may form unions within government organizations or in private enterprises without previous authorization as long as they operate within the framework of the officially sanctioned Federation of Lao Trade Unions (FLTU), which in turn is controlled by the LPRP. According to the FLTU, there were 3,042 trade unions nationwide, including in most government offices, with a total FLTU membership of 112,557. Most of the FLTU members worked in the public sector.

The government employed the majority of salaried workers, although this was changing as the government privatized state enterprises and otherwise reduced the number of its employees. Subsistence farmers made up an estimated 80 percent of the work force.

b. The Right to Organize and Bargain Collectively

There is no right to organize and bargain collectively. The law stipulates that disputes be resolved through workplace committees composed of employers, representatives of the local labor union, and representatives of the FLTU, with final authority residing in the MLSW. The law generally was not enforced by the MLSW, especially in dealings with joint ventures in the private sector. Labor disputes reportedly were infrequent. According to labor activists, the FLTU needed government permission to enter factories and had to provide advance notice of such visits, rendering it powerless to protect workers who filed complaints.

The government sets wages and salaries for government employees, while management sets wages and salaries for private business employees.

Strikes are not prohibited by law, but the government's ban on subversive activities or destabilizing demonstrations made strikes unlikely, and none were reported during the year.

The law stipulates that employers may not fire employees for conducting trade union activities, lodging complaints against employers about law implementation, or cooperating with officials on law implementation and labor disputes, and there were no reports of such cases. Workplace committees were used for resolving complaints, but there was no information on how effective these committees were in practice.

There are no operational export processing zones in the country.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced labor except in time of war or national disaster, during which time the state may conscript laborers. The law also prohibits forced or compulsory labor by children, and there were no reports that such practices occurred.

d. Prohibition of Child Labor and Minimum Age for Employment

Under the law children under age 15 may not be recruited for employment except to work for their families, provided the work is not dangerous or difficult. Many children helped their families on farms or in shops, but child labor was rare in industrial enterprises. Some garment factories reportedly employed a very small number of underage girls. The Ministries of Public Security and of Justice are responsible for enforcing these provisions, but enforcement was ineffective due to a lack of inspectors and other resources.

e. Acceptable Conditions of Work

The daily minimum wage for the approximately 7,000 factory workers was set at \$1.19 (11,154 kip); the monthly minimum wage was \$30.98 (290,000 kip). These minimum wages were insufficient to provide a decent standard of living for a worker and family. The minimum wage for several hundred thousand civil servants was raised from \$21.37 to \$26.71 (from 200,000 to 250,000 kip) per month in the government's 2007-8 budget. Although lower than the minimum wage for factory workers, civil servants often received other government benefits and housing subsidies. Some piecework employees, especially on construction sites, earned less than the minimum wage.

The law provides for a workweek limited to 48 hours (36 hours for employment in dangerous activities) and at least one day of rest per week. Overtime may not exceed 30 hours per month, and each period of overtime may not exceed three hours. The overtime pay rate is 150 percent for work from 5 p.m. to 10 p.m., 200 percent from 10 p.m. until 8 a.m., 250 percent from 8

a.m. to 10 a.m. on Lao National Day, and 300 percent after 10 a.m. on Lao National Day.

The law provides for safe working conditions and higher compensation for dangerous work. Employers are responsible for compensating a worker injured or killed on the job, or the worker's family. This requirement was generally fulfilled by employers in the formal economic sector. The law also mandates extensive employer responsibility for those disabled while at work, and this provision appeared to be enforced effectively. The MLSW is responsible for workplace inspections and stated that it was able to increase inspections during the past several years. According to the Labor and Social Welfare Department of Vientiane Capital, there are two types of inspections: regular inspections announced in advance, and urgent or special cases. Department and district officials undertake unannounced inspections when notified that a workplace has violated safe working standards. However, the MLSW lacked the personnel and budgetary resources to enforce the law effectively. The law has no specific provision allowing workers to remove themselves from a dangerous situation without jeopardizing their employment.

There were a number of illegal immigrants in the country, particularly from Vietnam and China, and they were vulnerable to exploitation by employers.

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